

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

FRANKLYN THEN,

SUMMONS

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NYPD POLICE OFFICER
GINA MESTRE, Shield No. 11607, NYPD POLICE
OFFICERS JOHN DOES NUMBERS ONE THROUGH
TEN,

Plaintiff designates Bronx
County as the place of trial.

Defendants.

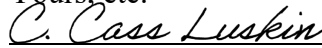
----- X

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 23, 2021

Yours, etc.



C. Cass Luskin, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 221-1000

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
NYPD POLICE OFFICER GINA MESTRE, Shield No. 11607, 52 PCT, 3016 Webster
Ave, Bronx, NY 10467

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

FRANKLYN THEN,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
GINA MESTRE, Shield No. 11607, NYPD POLICE
OFFICERS JOHN DOES NUMBERS ONE THROUGH
TEN,

Defendants.

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff FRANKLYN THEN, by his attorneys, Shulman-Hill, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On July 18, 2021, at approximately 6:00 p.m., Plaintiff Franklyn Then, while lawfully at the intersection of Davidson Avenue and West Kingsbridge Road, County of the Bronx, New York, was subject to an unlawful and unreasonable arrest, detention, search, assault, battery and excessive use of force by defendant Police Officers, including a brutal strip search at the precinct. In doing so, defendant Police Officers injured Plaintiff's ribs, causing serious physical injury necessitating medical treatment. Plaintiff was deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802 and his constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, assaulted, battered, subjected to excessive force, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Franklyn Then is a resident of the state of New York.

3. New York City Police Officer Gina Mestre, Shield No. 11607, is and was at all times relevant herein an Officer with the New York City Police Department.

4. New York City Police Officer Gina Mestre, Shield No. 11607 is being sued in their individual and official capacity.

5. Currently and at all times relevant herein, New York City Police Officer Gina Mestre, Shield No. 11607 was assigned to the 52nd Police Precinct of the NYPD.

6. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

7. New York City Police Officers John Does #1-10 are being sued in their individual and official capacities.

8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

9. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

10. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

11. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on November 4, 2021.

12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On July 18, 2021, at approximately 6:00 p.m., Plaintiff was present in the vicinity of Davidson Avenue and West Kingsbridge Road, County of Bronx, State of New York, when the defendant Police Officers unlawfully arrested, assaulted Plaintiff without legal justification.

16. Plaintiff was in a vehicle stopped by defendant officer Mestre.

17. Without reason or justification therefore, defendant officer ordered Plaintiff out of the vehicle, patted him down and placed him in handcuffs.

18. Despite possessing no contraband and committing no crime, Plaintiff was transported to the 52nd Precinct.

19. At the 52nd Precinct, Plaintiff was again searched and placed into a holding cell.

20. After a few minutes in the holding cell, Plaintiff was again taken out of the holding cell and subjected to a pat-down search.

21. A few moments later, Plaintiff was again removed and subjected to a third pat-down search.

22. Defendant Officers did not find any contraband on Plaintiff at any point, nor did they tell Plaintiff why they kept searching him.

23. Plaintiff was then told that he would be strip searched.

24. Defendant officers ordered Plaintiff into the bathroom where he was accompanied by upwards of 10 defendant officers.

25. Plaintiff was ordered to take off his clothing, including his underwear, which he did.

26. Plaintiff was then ordered to squat and cough while defendant officers inspected him, which he did.

27. Defendant officers were still not satisfied, however.

28. At this point, defendant officers told Plaintiff "We are going to search you good, man" and put on rubber gloves.

29. Plaintiff was grabbed by defendant officers who began punching him in the ribs and stomach.

30. Defendant officers then digitally penetrated Plaintiff in the bathroom of the 52nd Precinct while other defendant officers punched him in the ribs.

31. Plaintiff was then ordered back into the holding cell.

32. Defendant officers did not give Plaintiff back his clothing other than his underclothes.

33. Plaintiff sat in the holding cell in his underwear and in a ripped undershirt for approximately 30 minutes before defendant officers gave him back his clothing.

34. Despite Plaintiff's pleas for information, none of the defendant officers told what was going on.

35. Plaintiff remained at the 52nd Precinct for approximately 12 hours before being transported to Central Bookings.

36. Plaintiff was then transported to Bronx Central Booking where he remained for approximately 12 more hours.

37. While at Bronx Central Booking and at the Precinct, Plaintiff complained of pain to his ribs, but was told that receiving medical attention would prolong his custody significantly.

38. While Plaintiff was in custody, the defendant police officers provided the Bronx County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

39. Specifically, the defendant police officers falsely stated to the Bronx County District Attorney's Office that Plaintiff was engaged in Possession of a Controlled Substance and other offenses.

40. After being released at arraignment, Plaintiff went straight to CitiMed for the pain in his ribs.

41. Plaintiff received a diagnosis from CitiMed of a bruised rib and received treatment from them therefore.

42. Plaintiff's ribs continued to cause him pain for two months after he was physically assaulted by defendant officers.

43. As a result of this incident and of the injury caused therein, Plaintiff has began suffering emotional distress.

44. Plaintiff has had trouble sleeping and has experienced mental turmoil regrading his sexual assault by defendant officers.

45. Plaintiff's criminal case was dismissed and sealed on July 19, 2021.

46. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

47. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

48. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed patted down, strip-searched, and unlawfully detained.

49. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.

50. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

51. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

52. Defendants owed a duty of care to Plaintiff.

53. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers was unintentionally caused and that the force used by the defendants against his was unintentional, then the defendants breached that duty of care by punching him and bruising his rib.

54. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

55. All of the foregoing occurred without any fault or provocation by Plaintiff.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

58. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION
Unlawful Stop, Question, and Search

59. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

60. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

61. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

62. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

65. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

66. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

67. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

False Imprisonment

68. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

69. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

70. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

73. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights: Excessive Force

74. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

75. The use of excessive force by defendants by, amongst other things, punching him and bruising his ribs, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

76. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION**Assault**

77. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

78. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

79. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

82. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION**Battery**

83. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

84. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner punched him in the stomach and ribs causing a bruised rib and significant pain, as well as digitally penetrating him, without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

85. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

87. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

88. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

89. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

90. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

91. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

92. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

93. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

94. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

95. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

96. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

97. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

98. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

TENTH CAUSE OF ACTION

Failure to Intervene

99. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

100. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

101. Defendants failed to intervene to prevent the unlawful conduct described herein.

102. As a result of the foregoing, Plaintiff's suffered serious physical and emotional injury, his liberty was restricted for an extended period of time, he was put in fear of his safety, he did not receive necessary medical treatment, he was digitally penetrated without his consent or any justification, and he was humiliated and subject to other physical constraints.

103. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

104. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

105. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

106. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

107. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

108. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

109. Defendants filled out false and misleading police reports and, on information and belief, forwarded them to prosecutors in the Bronx County District Attorney's Office.

110. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

111. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

112. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

113. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

114. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

115. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional and psychological injuries.

TWELFTH CAUSE OF ACTION
Deliberate Indifference to Medical Needs

116. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

117. Defendants despite being aware that Plaintiff was suffering from bruised ribs and in substantial pain, delayed Plaintiff's medical treatment and refused to administer and properly procure immediate and adequate medical attention.

118. The delay in medical treatment to Plaintiff's injuries resulted in a months of pain that would have been prevented if Plaintiff received treatment in a timely manner.

119. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

120. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

121. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

122. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRTEENTH CAUSE OF ACTION

Individual Defendant Officer's Violation of Plaintiff's AC 8-8802 Rights

123. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

124. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

125. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

126. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately 24 hours in total.

127. The Defendant Officers, while in uniform, unlawfully strip searched Plaintiff including digitally penetrating him without reason or lawful basis therefore.

128. The Defendant Officers used unreasonable force including punching Plaintiff in the stomach and ribs, thereby causing serious injury to Plaintiff's ribs.

129. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

FOURTEENTH CAUSE OF ACTION

**Individual Defendant Officer's Failure to Intervene in Violation
of Plaintiff's AC 8-8802 Rights**

130. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

131. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

132. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

133. The Defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-8802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

134. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

135. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

FIFTEENTH CAUSE OF ACTION

**City-Employer's Liability for Defendant Officer's Violation of
Plaintiff's AC 8-8802 Rights**

136. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

137. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 8801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

138. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

139. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

140. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

141. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately 24 hours in total.

142. The Defendant Officers, while in uniform, unlawfully strip searched Plaintiff including digitally penetrating him without reason or lawful basis therefore.

143. The Defendant Officers used unreasonable force including punching Plaintiff in the stomach and ribs, thereby causing serious injury to Plaintiff's ribs.

144. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

SIXTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8802 Rights

145. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

146. Defendant Officers are “covered individuals” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 8801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

147. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

148. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

149. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

150. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8-8802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

151. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

152. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

JURY DEMAND

153. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff Franklyn Then demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8801 *et seq.*.

Dated: New York, New York
December 23, 2021

By: *C. Cass Luskin*
C. Cass Luskin, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
NYPD POLICE OFFICER GINA MESTRE, Shield No. 11607, 52 PCT, 3016 Webster
Ave, Bronx, NY 10467

ATTORNEY'S VERIFICATION

C. CASS LUSKIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
December 23, 2021

C. Cass Luskin
C. CASS LUSKIN